

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

September 26, 2011

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR: Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Collins, and pursuant to support received by Mr. Brown and Ms. Ash, agenda item #24(c) was removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Pierson. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on September 12, 2011. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest) due to a voucher payable to Ameri-Tech HVAC Services, and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Allen. Upon inquiry, Carol Intlekofer, City Clerk, provided information on the following vouchers payable to: Hirst Applegate law firm, outside legal fees affiliated with a hearing scheduled before the Fire Civil Service Commission; Powers, Depot elevator repair, and Schindler Elevator Corporation, Depot elevator preventive maintenance services. Upon inquiry, Jim Elias, Public Works Director, advised a voucher payable to VISA involved expenses for two employees to tour a construction and demolition recycling system in Boston, noting the processing system is partially identical to what is proposed at the Transfer Station. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Mayor Kaysen opened a public hearing to receive comments and input for a transfer of ownership for a retail liquor license application filed with the City Clerk's Office for Concord Neighborhood Corporation d/b/a Applebee's Neighborhood Grill and Bar, 1401 Dell Range Blvd., Cheyenne, Wyoming (License currently held by Wild West Apple Ventures Ltd., LLC d/b/a Applebee's Neighborhood Grill and Bar, 1401 Dell Range Blvd., Cheyenne, Wyoming). Mylon Skala, Director of Operations, Applebee's Concord Neighborhood Corporation, clarified Concord purchased the business from the current owner and they will continue operating in the same manner. There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the hearing and referred the application to Finance Committee.

Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City Map of the Cheyenne City Code, by changing the zoning classification from MR-1 Medium Density Residential Established and P Public Districts to PUD Planned Unit Development District for Lots 1 and 2, Block 1, and Lot 1, Block 2, Hospital Center, 1st Filing, City of Cheyenne, Laramie County, Wyoming (located between E. 22nd and E. 25th Streets, east of Warren and west of Evans Avenues). Jan Nelson-Schroll spoke in opposition to the ordinance. Comments included concerns with increased traffic, ambulance access, flooding, downtown area congestion, effects on the neighborhood, helicopter noise, and the need for additional planning and community involvement. Sunny Kaste spoke in favor of the hospital expansion plans, noting the development would be good for the neighborhood and stating she had no concerns with higher traffic or noise from helicopters. Reporting for Public Services Committee, Mr. Collins moved to approve on second reading, seconded by Ms. Ash. Mr. Collins explained that a recommendation to include Planning Commission Condition #1 was included with the motion at Finance Committee, however, since that meeting it was noticed that the Condition wording was contained within the ordinance (requiring an amendment). Mr. Collins moved to amend by incorporating Planning Commission Condition #1 by striking current language under Section I-6, bullet point #3, on page 6 of 10 of the ordinance and replacing with language that reads: "When provided, surface storm water detention areas shall be developed as public greens." Ms. Ash seconded the motion to amend. Comment followed on area drainage/flooding alleviation and diversion plans. Motion to amend carried. Voting "yes" -- all members of the governing body. Discussion followed on provisions of the PUD ordinance relative to the model that had previously been reviewed; structure height restrictions; buildings being articulated back 10 ft. in distance, and current Capitol Heights Overlay District (zoning) restrictions. David Land, Davis Partnership Architects, Denver, CO, advised there was a lot of discussion on whether to incorporate a "step back" in the PUD zoning ordinance and explained it will be addressed in the design and is not contained within the ordinance. He stated the cancer center is being designed as a two-story building that cannot be extended vertically, and the parking garage is being designed so it can expand 2 additional levels, which is under the height requirement, and provided information on the "step back" issue. Main motion as amended carried. Voting "yes" -- all members of the governing body.

Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City Map of the Cheyenne City Code, by changing the zoning classification from A-2 County Agricultural District to HI Heavy Industrial District for a portion of Section 1, T.13N., R.66W., 6th P.M., Cheyenne, Wyoming, also to be known as Lot 1, Block 1, GDC Subdivision (located south of Interstate 80, west of Campstool Road. Mayor Kaysen declared a conflict of interest (family financial interest) for this agenda item as well as agenda item #23(a) (Preliminary Plat); relinquished duties of the chair to Council President Rinne, and vacated Council Chambers. Mr. Collins moved to approve on second reading, seconded by Ms. Ash. Upon inquiry, Jon Narva, Cheyenne Fire and Rescue Dept., stated they are waiting for the result of an ISO assessment study which will determine whether the area would be considered an underserved area, and noted the new fire training center was built to accommodate use as a fire station for the area, but it is not staffed at the current time to provide fire response services. Comment followed regarding the potential need for additional fire response coverage and staffing for this area as well as the Swan Ranch area and consideration of same should be addressed at budget time. Upon inquiry, Jim Flescher, Planning and Development, advised the amount of community facility fees to be assessed for the area is approximately \$450,000.00, and Rick Parish, Parks and Recreation Director, advised at the present time there are no plans for use of the community facility fees. He noted a request for park land in the JL Ranch Subdivision area has been requested and

further review will be conducted when the fees have been received. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mayor Kaysen returned to Council Chambers with Council President Rinne returning duties of the chair to Mayor Kaysen.

Ordinance amending Section 5.44.030(C), Contractor Licensing Board - Membership - Term, of Chapter 5.44, Contractors, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming, relating to the removal of certain City officials as ex-officio members of the Contractor Licensing Board. Mr. Collins moved to approve on second reading, seconded by Ms. Ash. Mr. Collins moved to amend by substitute, seconded by Ms. Ash. It was advised the substitute addresses language clarification. Motion to amend carried. Voting "yes" -- all members of the governing body. Upon inquiry, Matt Ashby, Planning Services Director, advised the purpose of the ordinance is to bring City Code up-to-date with current state statute provisions. Main motion as amended carried. Voting "yes" -- all members of the governing body.

Ordinance amending Section 15.04.020(A), Building Code Board of Appeals, of Chapter 15.04, General Provisions, of Title 15, Buildings and Construction, of the Code of the City of Cheyenne, Wyoming, relating to the removal of certain City officials as ex-officio members of the Building Code Board of Appeals. Mayor Kaysen noted, similar to the previous agenda item, the purpose of the ordinance is to also bring City Code up-to-date with state statute provisions. Mr. Collins moved to approve on second reading, seconded by Ms. Ash. Motion carried. Voting "yes" -- all members of the governing body.

Ordinance annexing to the City of Cheyenne, Wyoming, a parcel of land being situated in portions of Sections 14 and 23, T.13N., R.67W., 6th P.M., Laramie County, Wyoming (generally located between Interstate 25 and Clear Creek Parkway, south of West College Drive) -- referred to Public Services Committee (sponsor - Mr. Collins).

[CA] Resolution authorizing submission of an Energy Efficiency and Conservation Block Grant application to the State Energy Office to continue energy efficient upgrades to Fire Stations Number 2 and 6 (Energy Development fund). Motion (per Consent Agenda) carried. (#5313)

[CA] Resolution authorizing the Mayor and the City Clerk to sign a County Final Plat for Country Homes Subdivision, 2nd filing, a replat of Lots 7 & 8, Block 3; Lots 2-7, Block 4; Lots 1-3 & 6-8, Block 5; and Lots 1, 2, 7 & 8, Block 6, and a portion of Grape Street, Country Homes Subdivision, and a portion of Tract 5 of the Allison Draw Flood Control Project, Laramie County, Wyoming (located north of and adjacent to Citrus Street, between Division and Pine Avenues). Motion (per Consent Agenda) carried. (#5314)

[CA] Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for JL Ranch IV, a replat of Lot 28, Block 3, JL Ranch, Cheyenne, Wyoming (located north of and adjacent to Alex Ranch Road, east of Taggart Drive). Motion (per Consent Agenda) carried. (#5315)

[CA] Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Frontier North, 3rd Filing, a replat of a portion of Lot 2, Block One, Frontier North, 2nd Filing, Cheyenne, Wyoming

(located at the northwest corner of the intersection of Frontier Mall Drive and Prairie Avenue. Motion (per Consent Agenda) carried. (#5316)

[CA] Resolution authorizing submission of an application to the United States Department of Treasury, for funding through the State Small Business Credit Initiative to increase access to capital in Cheyenne, Wyoming and surrounding area. Motion (per Consent Agenda) carried. (#5317)

Resolution authorizing the City of Cheyenne, through the City Attorney's Office, to commence condemnation proceedings to obtain real property located at 1900 Converse Avenue necessary for the completion of the East Pershing Boulevard Reconstruction Project (Phase 4) (2003-2006, 2007-2010 1% Sales Tax). Alex Davison, attorney, Patton and Davison law firm, representative for the property owner, expressed his reservations with regard to the structure of the resolution as drafted, and provided background information involving the property, which was initially acquired to construct a Hollywood Video business, and communication time frame between the parties involving the property acquisition issue. He explained since closure of the Hollywood Video store it has been difficult for the property owner to lease/rent the property as it is not a favorable location for any new tenants at this time, noting the proposed round-about project plans involve part of the property. He advised the City had been approached with regard to consideration of purchasing the entire property but the City's response indicated it is only interested in a portion of the parking area. Mr. Davison discussed problems affiliated with the removal of a portion of the parking area, which would limit the type of use for the building due to reduced parking spaces, and commented on concerns with ingress/egress to the property; potential zoning variance that may be required due to MUB zoning requirements; traffic patterns; lack of sizeable access for delivery trucks, and the difficulty in assessing an appraised value of the real property portion the City wishes to acquire for the reconstruction project. He noted a property appraisal has been requested and the information will be made available when received, and that negotiations are continuing with his client and City staff. Upon inquiry, Mr. Davison provided information in response to questions raised, including the following topics: Estimated appraised value of the entire property; potential zoning issues; square footage of the property vs. the area the City desires for the reconstruction project; monetary amount of the City's offer to purchase a portion of the property; potential future commercial use of the building; study of the property's parking space configuration and engineering costs; consideration of the City purchasing the entire property, and estimated time frame in which to receive property appraisal information. Comments were made regarding the City's past acquisition of properties north of the area in conjunction with the intersection reconstruction plans, and property acquisition for the Norris Viaduct project; need for a realistic cost estimate and additional information relative to mitigation for damages; reduction in parking spaces, and expenses that have been incurred by the property owner. During comments, Mr. Brown raised a point of order that discussion was occurring by governing body members without a motion on the floor. Mayor Kaysen confirmed that procedurally the opportunity for discussion and comments by the public was still in order. John Palmer spoke in opposition to the use of eminent domain proceedings; suggested any "leg work burden" to provide information should be the City's responsibility and not the property owner; commented on the proposed round-about project and its effect on the property, and stated his belief the City should buy the entire property. Mr. Valdez moved to adopt, seconded by Mr. Brown. Upon inquiry regarding existing and future property zoning compliance requirements, Matt Ashby, Planning Services Director, advised they have not reviewed the site with respect to current zoning regulations and impacts in conjunction with the construction of a round-about and any grandfathered/non-conforming uses, and the issues would be researched with information provided to the governing body prior to the next

meeting. Upon inquiry, Dan White, City Attorney, reviewed provisions generally relative to Wyoming Statutes involving condemnation, “just compensation” and the process of eminent domain, and advised the City has to make a good faith offer before proceeding with eminent domain. He briefly reviewed time frames and stated the City has made a good faith offer in an attempt to acquire the property needed for the project, and clarified the resolution authorizes moving forward with eminent domain proceedings if negotiations are not fruitful and that adoption of the resolution does not mean the City will file a condemnation action, nor would it mean discussion with the property owner would stop. He stated negotiations will continue and that the resolution is needed to meet the schedule to commence project construction next spring. Upon inquiry concerning the 6th Whereas clause contained in the resolution, Nathan Beauheim, Asst. City Engineer, provided information on past platting of the lots comprising the property, explaining it has been combined into a single lot, and the parcels the City is attempting to acquire. Upon further query, he clarified the two homes purchased by the City several years ago at the corner of Pershing and Converse were acquired knowing the intersection was going to be reconfigured, however, it was not certain what the configuration would be at that time. He stated when design of the intersection commenced, the consultant was told to take full advantage of the property located in the intersection along with the land on the northeast corner where the detention pond is located and right-of-way that the City owns. He advised even with the acquisition of the land related to the resolution, the City still needs to acquire two additional pieces of property for the round-about configuration. Mr. White clarified if the resolution was adopted it would authorize the Mayor to proceed with condemnation, if necessary, to ensure the property can be acquired to meet the construction schedule, and confirmed that no further condemnation legislation would come before the governing body. Upon inquiry, Mr. Beauheim stated a single lane (vs. a double lane) round-about would not have adequate capacity to handle the current, nor future, traffic level in the area; provided information on the City’s monetary offer to acquire the land, and provided information on property owner notification requirements and desired project construction time frame. Further comments followed on possibility of the City acquiring the entire property, not just the area required for the reconstruction project and assessed value of the property. Mr. Davison advised property value information will hopefully be received within the next 1 to 1½ months. Mr. Pierson moved to postpone action on the resolution for 45 days (to Nov. 14, 2011), seconded by Ms. Broyles. Mr. Beauheim explained time frame concerns if action is postponed, including construction scheduling for the round-about project as well as other scheduled work in the area. Mr. Davison spoke in favor of the motion to postpone, which will allow time for further discussion and to receive the property appraisal. Discussion included the proposed construction time frame; previous negotiations between the City, WYDOT and property owner; diminished parking spaces that may affect the property owner’s ability to lease the property to future tenants; possible purchase of the entire property by the City and concerns with a potential eminent domain/condemnation action. During discussion Mr. Beauheim provided information on the construction season schedule; estimated \$7 million dollars project cost; status of the design for the project (approximately 99% complete), and estimated contractor bidding time frame. Mr. White reviewed state law relative to eminent domain; discussed elements involved in “just compensation”, and advised passage of the resolution does not end property acquisition negotiations. Mr. Pierson withdrew his motion to postpone for 45 days with concurrence by Ms. Broyles as second to the motion. Upon inquiry, Mr. Ashby advised an analysis of zoning and site requirements could be conducted with regard to potential property use and any variance request procedures. Discussion continued on the City’s proposed compensation offer; need for property appraisal information, possible zoning variances related to future use of the property not affiliated with the area the City wishes to acquire, and support for and against the proposed resolution. In response to query concerning when a property appraisal for the

entire property might be received, Mr. Davison advised an appraisal could probably be acquired in less than 30 days, but an appraisal for just the portion the City wants is more difficult due to unknown variances that may be needed that would affect the value. Ms. Broyles moved to postpone for two weeks (to Oct. 10, 2011), seconded by Ms. Ash. Comments followed both for and against the motion to postpone. Upon inquiry regarding project cost and construction schedule, Mr. Beauheim provided information on estimated project costs, work involving the Board of Public Utilities, and the West Pershing construction schedule. Motion to postpone failed. Voting "yes" -- Ms. Ash, Ms. Broyles, Mr. Collins and Mayor Kaysen. Voting "no" -- Mr. Allen, Mr. Brown, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Upon inquiry, Mr. Beauheim verified there is \$7 million dollars in their budget for the project. Dr. Rinne moved to amend by striking the 6th Whereas clause in the resolution, seconded by Mr. Collins. Mr. Beauheim explained state statute requires the detail included in the property legal description. Mr. White stated his concern, from a legal standpoint, if the clause were removed. Dr. Rinne withdrew his motion to amend with concurrence by Mr. Collins as second to the motion. Upon further inquiry, Mr. White reviewed the purpose of an eminent domain action, advising condemnation proceedings can only involve land necessary for the project, and stated adoption of the resolution does not preclude continuing negotiations with the property owner. Main motion to adopt the resolution failed. Voting "yes" -- Mr. Brown, Mr. Collins and Dr. Rinne. Voting "no"-- Mr. Allen, Ms. Ash, Ms. Broyles, Mr. Pierson, Mr. Spiker, Mr. Valdez and Mayor Kaysen.

Following a 10 minute recess, Mayor Kaysen reconvened the meeting at 8:45 p.m.

[CA] Resolution repealing Resolution 5246; Creating a new resolution establishing golf course user fees and categories for the Airport Golf Course and Kingham Prairie View Golf Course; and providing for the division of revenues from said fees to be deposited between the General and Capital Improvement Fund. Motion (per Consent Agenda) carried. (#5318)

[CA] Resolution re-appropriating the Fiscal Year 2012 budget of the City of Cheyenne according to the provisions of W.S. 16-4-112 and 16-4-113 -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] Resolution authorizing the Mayor and City Clerk to execute a Wyoming Cultural Trust Fund Grant Agreement for restoration of the cemetery vault at Lakeview Cemetery -- referred to Finance Committee (sponsor - Mr. Valdez).

[CA] Resolution authorizing the construction of certain infrastructure improvements at Powers Field, and supporting future efforts to obtain grant funding, private donations, and other public funding to construct future infrastructure improvements at the Powers Field Complex -- referred to Finance Committee (sponsor - Mr. Pierson).

Preliminary Plat for GDC Subdivision, portions of Section 1, T.13N., R.66W., Section 6, T.13N., R.65W., Section 31, T.14N., R.65W., and Section 36, T.14N., R.66W., 6th P.M., and a replat of a portion of the right-of-way of HR Ranch Road, JL Ranch, Cheyenne, Wyoming (located south of Interstate 80, west of Campstool Road). Mayor Kaysen declared a conflict of interest (family financial interest); relinquished duties of the chair to Council President Rinne, and vacated Council Chambers. Mr. Collins moved to acknowledge receipt with staff recommendation #1, seconded by Ms. Ash. Upon inquiry, Jim Flescher, Planning Office, verified there was only one staff condition recommended. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers.

Following announcement of the vote, Mayor Kaysen returned to Council Chambers with Council President Rinne returning duties of the chair to Mayor Kaysen.

[CA] Juvenile Diversion and Transitional Services Contract between the City of Cheyenne, Youth Alternatives, and the State of Wyoming, Department of Family Services, Division of Juvenile Services. Motion (per Consent Agenda) carried. (#5734)

Employment Contract between the City of Cheyenne, Parks and Recreation Department, and Tim Grote for Greenway construction project management services (Greenway 1% Specific Purpose Sales & Use Tax) (postponed from Sept. 12, 2011). Mr. Valdez moved to approve in an amount not to exceed \$37,676.94, seconded by Mr. Brown. Mr. Valdez moved to amend by substitute, seconded by Ms. Broyles. City Attorney Dan White advised the substitute changes the dates of the contract due to the previous postponement action and clarifies salary and benefit terms. Motion to amend carried. Voting "yes" -- all members of the governing body. Main motion as amended carried. Voting "yes" -- all members of the governing body. (#5735)

Professional Services Agreement between the City of Cheyenne, Metropolitan Planning Organization, and Clarion Associates, LLC, for a Land Use and Transportation Update to PlanCheyenne, the Cheyenne Area Master Plan (Federal MPO funding). Mr. Valdez moved to approve in an amount not to exceed \$304,692.00, seconded by Mr. Brown. Comments followed regarding annexation topics included in the agreement. Upon inquiry, John Knepper, Asst. City Attorney, advised the document is the work plan for the consultants who will develop the update, and provided information on wording that had been removed under the bullet points in Section 3.1., Urbanization Strategy, prior to finalization of the agreement relative to annexation growth agreements, noting it had been decided the City would not adopt annexation standards other than what is in state law. Discussion included City/County continuing discussions and dialogue on annexation issues. Mr. Collins moved to amend the bullet points under Section 3.1., Urbanization Strategy, to incorporate a bullet point to read as follows: "Explore city and county annexation growth agreements." Mr. Pierson seconded the motion. Upon inquiry, Mr. Knepper advised the goal was to have the city and county adopt identical versions of the agreement and that he had no objection to the proposed amendment language. Motion to amend carried. Voting "yes" -- all members of the governing body. Main motion as amended carried. Voting "yes" -- all members of the governing body. (#5736)

[CA] Use Agreement between the City of Cheyenne, Engineering Department, and 360networks (USA) inc., for limited use of the public right-of-way for the installation of fiber optics and setting a fee. Motion (per Consent Agenda) carried. (#5737)

[CA] Amendment Number Four (City Clerk note: Clerical correction - Amendment Number Five, not Number Four) to the Cooperative Agreement between the City of Cheyenne and the Wyoming Department of Transportation for the transfer of WYDOT's Federal Aid funding from the West Pershing Boulevard Project fund to the East Pershing Boulevard Project fund -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5414 between the City of Cheyenne, Sanitation Division, and Clean Harbors Environmental Services, Inc. for hazardous waste disposal services at the Cheyenne Household Hazardous Waste Facility. Motion (per Consent Agenda) carried. (#5414)

[CA] Consideration of Bid #M-5-12 for purchasing a bulk ice control product for the Public Works Department for use on City streets (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (accept bid from Desert Mountain Corporation, Riverton, in an amount not to exceed \$337,140.00).

[CA] Consideration of Bid #M-3-12 for a contract between the City of Cheyenne and Naranjo Civil Constructors, Inc., Greeley, CO, for the Safe Routes to School, Arp Elementary Connector Project (Greenway 1% Specific Purpose Sales & Use Tax). Motion (per Consent Agenda) carried (accept bid from Naranjo Civil Construction, Inc., Greeley, CO, in an amount not to exceed \$377,308.50). (#5738)

[CA] Consideration of Bid #R-7-12 for furnishing eight new 2011-2012 ¾ ton quad cab or crew cab, 4x4 trucks, for the City's Parks, Recreation, Forestry, Street & Alley, and 1% Concrete Divisions (2007-2010, 2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried (accept bid from Halladay Motors, Cheyenne, in an amount not to exceed \$255,038.95).

[CA] Consideration of Bid #R-9-12 for furnishing ammunition for the Cheyenne Police Department. Motion (per Consent Agenda) carried (accept bids from BVAC, Inc., Stevensville, MT, in an amount not to exceed \$7,988.40; Ultramax Ammunition, Rapid City, SD, in an amount not to exceed \$37,300.00; Lawmen's & Shooters Supply Inc., Vero Beach, FL, in an amount not to exceed \$5,280.00).

[CA] Consideration of Bid #R-11-12 for the surplus sale of one complete Laser Tag System at the City of Cheyenne, Parks & Recreation Department, City-owned Ice and Events Center -- referred to Finance Committee.

[CA] Consideration of Bid #R-5-12 for furnishing one new 2011-2012 15 yd. hook-lift truck with a tarping system for the Sanitation Division (Solid Waste Management fund) -- referred to Finance Committee.

[CA] Consideration of Bid #R-6-12 for furnishing one new 2011-2012 patch truck for the Street & Alley Division (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-8-12 for furnishing one new 2011-2012 articulating overcenter aerial device for the Forestry Division (2011-2014 1% Sales Tax and General fund) -- referred to Finance Committee.

[CA] Transfer of location for a retail liquor license application filed with the City Clerk's Office for Cloud 9, Inc. d/b/a Cloud 9 Liquorland, 1958 Dell Range Boulevard (Suite C), Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

[CA] Community Facility Fees Report for Fiscal Year ending June 30, 2011. Motion (per Consent Agenda) carried.

Announcement was made of a Public Hearing to be held October 10, 2011 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exist for a parcel of land being situated at 5618

Townsend Place and described as the north 170 feet of Tract 6, Briney Tracts, Laramie County, Wyoming (generally located at the southwest corner of Townsend Place and east Carlson Street).

Under Other Business:

Tom Mason provided clarifying information on the purpose of the City's past purchase of two residential properties off Pershing in conjunction with the future Pershing/19th Street/Converse construction project.

John Palmer expressed concerns with the public participation discussion procedure at meetings and suggested consideration to have City Council members speak first, then the public.

Ms. Broyles and Mr. Brown commented on property title issues surrounding the resolution involving the sale of real property to Menard, Inc. (Re: Motion to adopt failed at the Sept. 12, 2011 City Council meeting) and their reasons why neither would be making a motion to reconsider the resolution at the current meeting. It was noted that staff needs to continue with efforts to resolve the title issue.

Graffiti clean-up on the Norris Viaduct was requested by Mr. Valdez.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 9:16 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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